

Retailer Supply & K SELECT Platform Agreement

RETAILER

COMPANY NAME

COMPANY ADDRESS

REPRESENTATIVE

LETUSTO

COMPANY NAME

Letusto Inc.

ADDRESS

23B Roland Ave., Mount Laurel, NJ 08054 USA

REPRESENTATIVE

Chae Hahm

This Agreement is entered into by and between Letusto Inc. / K SELECT (“Letusto”) and the retailer identified below (“Retailer”) to establish the basic rights and obligations governing product supply, sales at approved locations, participation in the K SELECT Retail Network, and use of the K SELECT platform.

Article 1. Purpose and Business Relationship

1. This Agreement establishes the basic terms under which Letusto supplies products to the Retailer and the Retailer sells such products at approved locations through the K SELECT Retail Network and related platforms.
2. Unless otherwise agreed in writing, this Agreement is non-exclusive. The Retailer may purchase from other suppliers, and Letusto may supply products to other retailers.
3. Products purchased under this Agreement are intended primarily for sale by the Retailer to end consumers at the Retailer’s approved retail locations.

Article 2. Approved Sales Locations and Resale Restrictions

1. The Retailer may sell products supplied by Letusto only at stores or sales locations approved by Letusto.
2. If the Retailer operates multiple stores, products supplied under this Agreement may be sold only at locations that have been approved in advance by Letusto.
3. The Retailer must obtain Letusto’s prior approval before selling the products at any new or additional location.

4. Without Letusto's prior written approval, the Retailer may not resell or wholesale products purchased from Letusto to another retailer, distributor, wholesaler, reseller, or other business entity.
5. Without Letusto's prior approval, the Retailer may not sell the products through Amazon, Walmart Marketplace, eBay, other online marketplaces, or other third-party sales channels.
6. The transfer, relocation, or resale of products between retail locations or retail entities may not occur without Letusto's prior approval.

Article 3. Product Orders and Supply

1. Orders may be placed through the K SELECT Portal, Purchase Orders, email, or any other method recognized by both parties.
2. Products, quantities, purchase prices, MOQ, lead times, and other transaction-specific terms will be governed by the applicable order, Invoice, or separate written agreement.
3. Once an order has been confirmed, neither party will materially modify or cancel the order without the other party's consent.
4. If products become unavailable due to stock shortages, supply delays, or other causes, Letusto will notify the Retailer as promptly as reasonably possible.

Article 4. Pricing, MAP, and Payment

1. The Retailer's purchase price and payment terms will be based on the applicable Price List, Purchase Order, Invoice, or separate written agreement.
2. For products subject to a Minimum Advertised Price (MAP) Policy established by Letusto or the applicable brand, the Retailer agrees to comply with that policy.
3. To the extent permitted by applicable law, the Retailer will not publicly advertise a product below the applicable MAP through online listings, flyers, digital advertising, or other public advertising channels.
4. Promotions, clearance pricing, or other special pricing will follow any conditions separately approved or communicated by Letusto.
5. Payment terms may vary by transaction and may include Prepaid, Credit Card, ACH, COD, Net Terms, or other agreed methods.
6. In the event of repeated late payments or a material change in the Retailer's credit condition, Letusto may adjust the Retailer's Credit Limit or Payment Terms or require payment in advance.

Article 5. Delivery, Inspection, and Returns

1. Shipping method, freight charges, and delivery terms will be determined by the applicable order or Invoice.
2. The Retailer will inspect the shipment within a reasonable period after receipt for quantity discrepancies, visible damage, mis-shipments, and apparent product defects.

3. If a shortage, mis-shipment, shipping damage, or product defect is discovered, the Retailer will notify Letusto and provide photos or other relevant supporting information.
4. If the issue is confirmed to be the responsibility of Letusto or the supply side, Letusto may resolve the matter through Replacement, Credit, Refund, or another reasonable remedy.
5. Returns due to slow sales, excess inventory, or other business circumstances of the Retailer are permitted only with Letusto's prior approval.
6. Products returned without prior authorization may be excluded from return or Credit eligibility.

Article 6. K SELECT Retail Network Operating Standards

1. The Retailer will use and maintain the Display System, Fixtures, and related merchandising materials provided by Letusto or K SELECT at the approved location and for their intended purpose.
2. Unless otherwise agreed in writing, ownership of any Display System or Fixture provided by Letusto remains with Letusto, and Letusto may recover such property upon termination of the Agreement or the applicable program.
3. The Retailer and the responsible personnel at the approved location will complete the basic Product Training and operational training designated by Letusto.
4. As a general operating requirement, the Retailer will conduct an Inventory Check for K SELECT products once each week.
5. The Retailer will update or report inventory quantities, out-of-stock items, loss, damage, or other material inventory issues through the K SELECT Portal or another method designated by Letusto.
6. The Retailer will reasonably maintain the condition, price labels, organization, and cleanliness of the K SELECT Display.

Article 7. Product Representations, Customer Service, and Claims

1. The Retailer will present products to customers based on the official product descriptions, directions for use, claims, ingredients, warnings, and marketing materials provided by Letusto, the applicable brand, or the manufacturer.
2. Neither the Retailer nor its employees may make false, exaggerated, guaranteed, therapeutic, safety-related, or other representations about a product beyond the information officially provided or approved.
3. If the Retailer or its employees independently make excessive statements, guarantees, promises, or representations beyond the product information provided or approved by Letusto or the brand, the Retailer will be responsible, within its area of responsibility, for resulting customer Claims, damages, or disputes.

4. If the Retailer becomes aware of a material Customer Claim involving product safety, allergy, adverse reaction, quality, product damage, or a similar issue, the Retailer must notify Letusto as promptly as reasonably possible.
5. Before consulting with Letusto regarding a material product Claim, the Retailer will use reasonable efforts not to admit liability or make a material compensation commitment on behalf of the manufacturer or Letusto.
6. If a Claim appears to arise from the product itself, manufacturing, or the supply side, Letusto will cooperate with the applicable brand or supplier to take appropriate action.
7. In the event of a Recall, Safety Notice, or regulatory action, the Retailer will cooperate with reasonable instructions concerning sales suspension, inventory verification, product segregation, return, or other necessary measures.

Article 8. Use of the K SELECT Platform

1. The Retailer may use the K SELECT Portal to manage orders, inventory, product information, Invoices, Payments, Claims, and other transaction-related activities.
2. The Retailer will use reasonable efforts to keep company information, store information, inventory information, and other transaction data entered into the platform accurate and current.
3. The Retailer is responsible for safeguarding its user accounts and passwords.
4. Letusto will use commercially reasonable efforts to maintain the security and stable operation of the platform.
5. Temporary service interruptions caused by system maintenance, third-party service failures, or technical matters beyond Letusto's reasonable control will not, by themselves, constitute a breach of this Agreement.

Article 9. Term, Breach, and Termination

1. The initial term of this Agreement is two (2) years from the date the Agreement becomes effective.
2. Unless either party gives written or email notice of non-renewal at least ninety (90) days before the end of the then-current term, the Agreement will automatically renew for successive two-year terms on the same conditions.
3. Either party may terminate this Agreement without cause by providing at least ninety (90) days' prior written or email notice to the other party.
4. In the event of a material breach, Letusto may suspend product supply, suspend approval of the affected location, or terminate this Agreement when reasonably necessary. Material breaches may include repeated or substantial payment delinquency, sales at an unapproved location, unauthorized wholesale or resale to third parties, repeated or substantial violations of an applicable MAP Policy, material misuse of the Display System, intentional false reporting of inventory, repeated unauthorized product Claims or exaggerated advertising, or other material violations of this Agreement.

5. Termination will not affect payment obligations, confirmed orders, or other transactions that arose before termination, which will be settled in the ordinary course unless otherwise agreed.
6. Any Fixture or Display System owned by Letusto will be recovered or otherwise handled by mutual coordination upon termination of this Agreement or the applicable location's participation in the program.

Article 10. Confidentiality, Amendments, Disputes, and Electronic Signatures

1. Each party will not improperly use for purposes outside this Agreement or disclose to third parties the other party's non-public information learned through the business relationship, including supply prices, transaction terms, sales information, store information, and other confidential business information.
2. Any material amendment to this Agreement must be made with the written consent of both parties.
3. Product-specific pricing, quantities, shipping terms, and payment terms may be established differently for individual transactions through a Purchase Order, Invoice, or separate written agreement.
4. In the event of a dispute relating to this Agreement, the parties will first attempt in good faith to resolve the matter through mutual discussion.
5. If a material dispute cannot be resolved through discussion, the parties will first consider resolution through Arbitration under procedures mutually agreed by the parties.
6. This Agreement may be executed through the K SELECT Portal or by other electronic means. Electronic signatures and electronically executed copies agreed to by both parties will be treated as written agreements.
7. This Agreement becomes effective on the date it is signed by both parties.

SIGNATURES

The parties acknowledge that they have reviewed and agreed to the terms of this Agreement and execute it as follows.

RETAILER

COMPANY NAME

REPRESENTATIVE / SIGNER

TITLE

SIGNATURE

DATE

LETUSTO INC.

COMPANY NAME

Letusto Inc.

REPRESENTATIVE / SIGNER

Chae Hahm

TITLE

CEO

SIGNATURE

DATE

ELECTRONIC EXECUTION RECORD

EXECUTED VIA

AGREEMENT VERSION AGREEMENT ID

EXECUTED DATE